

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:)
)
DIXIE CAROL WINTERS,) *W. Danial Newton*, for the Plaintiff (Moving
) Party)
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Plaintiff)
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- and -)
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)
LOBLAWS SUPERMARKETS LIMITED) *Chantal Brochu*, for the Defendant
)
OPERATING AS REAL CANADIAN)
SUPERSTORE,)
)
Defendant)
)
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)
) **HEARD:** March 31, 2003

Mr. Justice J. deP. Wright

Decision On Motion

[1] This is a motion brought by a Plaintiff for leave to abridge the time for delivering an expert's report under Rule 53.03(4).

[2] This action is scheduled to be tried next week commencing April 7.

[3] This action is based upon a slip and fall in a large "Superstore". The incident occurred in January, 1995. This action was initiated in March of 1999. Discoveries were completed by

September of 1999. The pre-trial took place in October of 2000. The record was passed in February of 2001 but a trial date was not taken out until the fall of 2002. On March 27 this motion was brought and adjourned to myself as trial judge.

[4] The Plaintiff relies upon the provisions of Rule 53.08 which provides:

- (1) If evidence is admissible only with leave of the trial judge under a provision listed in subrule (2), leave shall be granted on such terms as are just with an adjournment if necessary, unless to do so will cause prejudice to the opposite party or will cause undue delay in the conduct of the trial.

[5] The onus appears to be upon the responding party to show that prejudice will be caused or undue delay in the conduct of the trial will arise. The rule does not appear to take into consideration the prejudice to other litigants who are standing in queue waiting to have their cases heard. Counsel argues that systemic prejudice is not a factor which may be considered under Rule 53.08 as it is presently drafted.

[6] The defence takes some exception to the suggestion that an expert's report may now be produced. I have not looked at the expert's report. I am informed that it suggests that there were architectural methods for taking precaution against the tracking of snow and slush into the store and that failure to adopt these architectural precautions in this part of the world constitutes negligence. The Defendant points out that this evidence would not come within any of the present headings of negligence as pleaded and that before this evidence would be admissible an amendment to the Statement of Claim would be necessary. The Plaintiff somewhat cheerfully accedes to this argument and asks for such an amendment.

[7] The Defendant has an interest in having this action disposed of. Pending litigation with its uncertainties and scheduling difficulties causes disruption in any business enterprise. In addition to the normal inconveniences of litigation in this case a young man who was employed by the Defendant in 1995 is now no longer employed by the Defendant but is employed in the community of Nipigon some distance outside of Thunder Bay. Obviously, some 8 years after the event, this young man has no personal stake in this litigation and sees it only as an inconvenience in his life. It is submitted that he is reluctant to be involved in this case, that it is unfair to him to postpone once again the time when he will be called upon to give evidence.

[8] This raises a very serious ground of prejudice. Witnesses, especially those who have no personal interest in the action, bitterly resent being called upon to submit to cross-examination on their recollections which are many years old. They legitimately argue that if their evidence is that important it should have been taken while their memories were fresh. Unfortunately, this too may not be the sort of thing contemplated as prejudice by the rules. The Defendant is concerned that this witness, who is a reluctant witness at best, will become positively hostile as a result of the postponement of the trial.

[9] The Defendant submits reasonably that if leave is granted to amend the pleadings and to abridge the time then there will be a request by the Defendant for time to deliver its own expert report. Under no circumstances then can the trial proceed as scheduled on April 7 with all of the consequences to witnesses and parties set out above.

[10] Mr. Justice Estey, then on the Supreme Court of Canada in *Harper v. Harper* (1979), 98 D.L.R. (3d) 600 at page 621 reminded us that "... the modern tradition in my view [places] more emphasis on expeditious justice than finite justice ...".

[11] This would suggest that there are times when matters must be brought to a head and that the need for expedition outweighs the possibility that finite justice may suffer.

[12] Is this one such case?

[13] I am told that one of the difficulties in obtaining a trial date, a process which appears to have taken a year and a half after the record was passed, was the inability to schedule this as a result of the busy schedule of defence counsel.

[14] Having considered all of these factors, with some reluctance I grant the Plaintiff's amendment to the Statement of Claim as asked and abridge the time for delivery of the expert's report by the Plaintiff. I grant the Defendant an adjournment of the trial for the purpose of delivering its own expert's report.

[15] Given the situation with the particular independent witness involved I think this is an appropriate case for the Plaintiff to pay to that witness the sum of \$250.00 for rescheduling the trial.

[16] This action will be struck off the list to be placed back on the list for trial only when both parties certify they are ready for trial or with a direct of the court.

original signed by
Mr. Justice J. deP. Wright

Released: March 31, 2003

COURT FILE NO.: 99-0141

DATE: 2003-03-31

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B E T W E E N:

DIXIE CAROL WINTERS,

Plaintiff

- and -

LOBLAWS SUPERMARKETS LIMITED
OPERATING AS REAL CANADIAN
SUPERSTORE,

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